

24STCV30945 24STCV30945

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-09-03

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Case Number: 24STCV30945 Hearing Date: September 3, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT

729

TENTATIVE RULING

KHALID LATEEF WARREN,

vs.

GENERAL MOTORS LLC, et al.

Case No.:

24STCV30945

Hearing

Date: September 3, 2026

Defendant

General Motors LLC's motion to tax

Plaintiff Khalid Lateef Warren's memorandum of costs is denied.

Defendant General Motors LLC ("GM")

("Defendant") moves to tax costs requested by Plaintiff Khaled Lateef Warren ("Warren")

("Plaintiff") in his May 14, 2026, Memorandum of Costs. (Notice Motion, pg. ii; CRC, Rule 3.1700(b).)

Procedural
Background

This

is a lemon law action brought under the Song-Beverly Consumer Warranty Act ("Song-Beverly").

February 20, 2026, Plaintiff accepted Defendant's

settlement offer, which resolved entire lawsuit by paying Plaintiff

\$100,000.00, plus pre-judgment interest and reasonably incurred attorney fees

and costs by motion. (Decl. of Bowton

¶15.)

On

May 14, 2026, Plaintiff filed his memorandum of costs.

On

May 28, 2026, Defendant filed the instant motion. On August 21, 2026, Plaintiff filed his

opposition. On August 27, 2026,

Defendant filed its reply.

Motion

to Tax Costs

CRC,

Rule 3.1700(b)(1) provides that a party may file a motion to strike or tax

costs sought via a Memorandum of Costs by filing a motion within 15 days after

service of the cost memorandum (with the period to be extended in Code of Civil

Procedure section 1010.6(a)(3).) (CRC,

Rule 3.1700(b)(1).)

First,

Defendant moves to tax \$582.77 in filing and motion fees on the basis that the costs

are inflated by using unnecessary third-party filing services (i.e., "One

Legal") and for moving for filing costs on an "anticipated" motion for

attorneys' fees. (Motion, pg. 4.) Defendant's arguments are not well taken. Plaintiffs are entitled to recover all

expenses incurred in conjunction with such filing as it is mandatory that one

of the appointed filing services be used.

Further, Plaintiff's costs for the motion for attorneys' fees was not

actually anticipated because Plaintiff did in fact file the motion and

reply. Defendant's request to tax filing

and motion fees is denied.

Second,

Defendant moves to tax \$179.25 for jury fees because the case never went to trial. (Motion, pg. 4.) Defendant cites no legal case, statute, or treatise in support of its assertion that Plaintiff cannot recover these costs; C.C.P. §1033.5(a)(1) specifically allows for the recovery of these fees. This Court requires parties to pay a jury fee at the beginning of this case to preserve a party's right to a jury. Defendant's request to tax jury fees is denied.

Third,

Defendant moves to tax \$150.00 in process server fees associated with discovery. (Motion, pg. 4.) Defendant argues that these costs involved service of process on GM and the named dealer defendant for depositions, and the depositions were not taken and not necessary for advancing the case. Defendant does not provide any legal citation that interprets C.C.P. §1033.5(a) to disallow the recovery of Service of Process fees. C.C.P. §1033.5(a)(4) plainly states "[s]ervice of process by a public officer, registered process server, or other means" is an allowable costs item. Further, Plaintiff provided the costs were actually incurred and were necessary to advance the case. (See Decl. of Urner ¶4, Exh A.) Defendant's request to tax service of process fees is denied.

Fourth,

Defendant moves to tax \$355.20 in fees for electronic filing or service on the basis that Plaintiff does not attach supporting invoices or itemized breakdowns justifying the expense. (Motion, pg. 4.) There is no requirement that copies of bills, invoices, statements, or any other such documents be attached to the memorandum. (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1261.) Electronic filing fees were necessarily incurred to file documents with the Court and are allowable under C.C.P. §1033.5(a)(14). Defendant provides no legal support for its contention that such ordinary fees are not recoverable. Defendant's request to tax costs for electronic filing or service fees is denied.

Finally,

Defendant moves to tax \$253.87 in "other" costs on the basis that Plaintiff has not demonstrated that these costs were even incurred or required to advance the case. (Motion, pg. 4.) Defendant also challenges \$16.99 in costs for

a Carfax, which it argues is an overhead expense. (Motion, pg. 4.) Defendant's argument is not well taken. Plaintiff provided the costs were actually incurred and were necessary to advance the case. (See Decl. of Urner ¶14, Exh A.) Defendant's request to tax costs for electronic filing or service fees is denied.

Conclusion

Defendant's motion to tax Plaintiff's Memorandum of Costs is denied.

Moving party to give notice.

Dated: September
_____, 2026

Hon.
Daniel M. Crowley

Judge of
the Superior Court